



June 29, 2017

Federal Maritime Commission
Attn: Secretary

Re: Docket No. 17-04, Regulatory Reform Initiative

Dear FMC Secretary,

Dependable Global Express, Inc. dba DGX is a Licensed NVOCC and Freight Forwarder with its headquarters located in Los Angeles, CA area. Herewith, we address our organization's main points of concerns.

46 CFR Part 520 Carrier Automated Tariffs

We believe the requirement to publish rate tariffs should be entirely exempted when Carrier's terms and conditions are published and available to the public elsewhere. Filing rates and control/rule of when rates are filed is outdated, unnecessary and ineffective. The process of filing the rate is restrictive and time to file laborious. This rate filing tools and investment of various company resources is burdensome and expensive. Additionally, the OTI's liability exposure resulting from human error when filing tariff rates is of great concern.

46 CFR Part 531 NVOCC Service Arrangements

The requirement for NVOCCs to file NSAs with the Commission or to publish essential terms of NSAs in their tariffs should be repealed. What purpose does having them published serve? Between 2 parties, a contract exists and should be the guiding document to any transactions mutually undertaken.

46 CFR Part 532 NVOCC Negotiated Rate Arrangements

NRA's exemptions should be broadened to eliminate:

- Restrictions on amending. Between 2 parties, a contract exists and should be the guiding document to any transactions mutually undertaken. If the parties decide to amend the contract, they should be able to.
- Restrictions on including economic terms such as credit, minimum quantities, liquidated damages, etc.; A contract is comprised of a written offer and an acceptance. As long as the terms and conditions are agreed to, there is an understanding/meeting of the minds and mutually agreed to economic consideration, this is enough to make the contract legal under contract law. Why should the FMC change the basic concepts underlying contract law? It should not.

Looking forward to progressive reform that will alleviate unnecessary burdens and expenses in an industry already facing an increasing amount of operational expenses.

Thank you for reviewing our comments.

Sincerely,



Brad Dechter
President